ENTERPRISE CAPACITY AGREEMENT

Cloud Data Warehousing & Analytics Platform

Agreement Date:	January 01, 2025
Contract ID:	SNOW-2025-00067
Vendor:	Snowflake Inc. | 450 Concar Drive, San Mateo, CA 94402
Customer:	Acme Corporation | 1600 Technology Drive, Halifax, NS B3J 1N9
Effective Date:	January 01, 2025
Renewal Date:	October 31, 2025
Contract Term:	10 months (January 1, 2025 – October 31, 2025)
Auto-Renewal:	Yes – 60-day written notice required to cancel
Notice Period:	60 days written notice required
Contract Value:	$14,500.00 USD / year
Pricing Escalation:	Capacity-based; $14,500 credit commitment with 10% rollover

1. Scope of Services

Snowflake Inc. ("Vendor") agrees to provide Acme Corporation ("Customer") with access to the following services and licensed products for the Data department under this Agreement:

- Snowflake Enterprise Edition — $14,500 credit commitment
- 10% unused credit rollover to next year
- Multi-cluster virtual warehouses
- 90-day Time Travel and Fail-safe
- Cross-account data sharing
- Tri-Secret Secure encryption supported

2. Fees & Payment Terms

The total annual contract value is $14,500.00 USD, invoiced annually in advance on the Effective Date of each contract year. Payment is due within 30 days of invoice date. Late payments accrue interest at 1.5% per month. All fees are exclusive of applicable taxes.

Pricing escalation terms: Capacity-based; $14,500 credit commitment with 10% rollover.

3. Auto-Renewal & Cancellation

This Agreement will automatically renew for successive 12-month periods at the then-current pricing plus the applicable annual escalation rate, unless either party provides written notice of non-renewal at least 60 days prior to the Renewal Date.

Cancellation notice must be submitted in writing to contracts@snowflake.com and acknowledged in writing by Vendor to be effective. Customer remains liable for fees through the end of the current term regardless of cancellation.

4. Service Level Agreement (SLA)

- 99.9% service availability
- Enterprise support: 24/7 Severity 1 response
- P1: 1-hour response, 4-hour resolution
- Dedicated Technical Account Manager

5. Data Security & Privacy

Vendor will maintain SOC 2 Type II and ISO 27001 certifications throughout the term. Customer data is encrypted in transit (TLS 1.2+) and at rest (AES-256). Vendor will notify Customer within 72 hours of any confirmed data breach affecting Customer data. Data handling complies with applicable Canadian privacy legislation (PIPEDA / provincial equivalents).

6. Key Terms & Conditions

- Intellectual Property: All Vendor software, documentation, and derivatives remain the exclusive property of Vendor.
- Confidentiality: Both parties agree to maintain strict confidentiality of proprietary business information for 3 years beyond termination.
- Limitation of Liability: Vendor's aggregate liability shall not exceed the total fees paid in the 12 months preceding the claim.
- Governing Law: This Agreement is governed by the laws of the State of California, USA.
- Dispute Resolution: Disputes shall first be escalated to executive sponsors; unresolved disputes proceed to binding arbitration.
- Force Majeure: Neither party is liable for delays caused by events beyond reasonable control.
- Assignment: Customer may not assign this Agreement without prior written consent of Vendor.

7. Signatures

By signing below, both parties agree to be bound by the terms and conditions of this Enterprise Capacity Agreement as of the Effective Date stated above.

FOR SNOWFLAKE INC.

Hannah Lee
Enterprise Account Executive
Snowflake Inc.
January 01, 2025

FOR ACME CORPORATION

Marcus Reid
Chief Financial Officer
Acme Corporation
January 01, 2025